

Congress of the United States
House of Representatives

COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY

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February 25, 2026

The Honorable Brendan Carr
Chairman
Federal Communications Commission
445 12th Street, S.W.
Washington, D.C. 20554

Dear Chairman Carr:

The Federal Communications Commission (the “Commission” or “FCC”) is considering a Notice of Proposed Rulemaking titled “Space Modernization for the 21st Century” (the “NPRM”).¹ While the stated purpose of the NPRM is to create a more efficient “licensing assembly line” to expedite application review, several provisions of the NPRM extend well beyond efforts to streamline communications licensing and extend into areas of space activity regulation for which the Commission lacks statutory authority.

We write to you to respectfully request that you rescind the “Space Modernization” NPRM referenced above or issue a Further Notice of Proposed Rulemaking (FNPRM) focused exclusively on radiofrequency communications licensing for private space systems. Per House Rule X(1), the Committee on Science, Space, and Technology (the “Committee”) has jurisdiction over “[o]uter space, including exploration and control thereof.” The Committee has a long history of considering legislation related to the authorization and supervision of United States space activities, and regularly conducts oversight of agencies responsible for regulating nongovernmental space actors.

The Committee supports efforts to clarify and expedite FCC processes for radiofrequency communications licenses for private space systems. However, the NPRM proposes requirements related to “space safety” unrelated to spectrum management or the prevention of harmful radiofrequency interference. For example, the NPRM would require operators to “take all possible steps” to assess and mitigate collision risks, and to certify compliance with an FCC-established probability of human casualty threshold.

¹ Federal Communications Commission, Notice of Proposed Rulemaking, “Space Modernization for the 21st Century”, SB Docket No. 25-306, FCC-25-69 (rel. October 29, 2025) 90 Fed. Reg. 56338, available at: <https://www.fcc.gov/document/space-modernization-21st-century-nprm> (hereinafter the “NPRM”).

Such proposed requirements would effectively condition access to spectrum licenses on compliance with operational requirements unrelated to radiofrequency communications. The Communications Act of 1934—enacted decades before the advent of spaceflight—contains no clear congressional authorization empowering the FCC to regulate space safety, space traffic management, or broader non-communications space operations. As the bipartisan leadership of the Committee previously has written in several letters to the Commission,² FCC conditions that impose general space safety requirements untethered to radiofrequency licensing exceed the Commission’s statutory authority.

Recent decisions by the Supreme Court underscore the limitations on inferred statutory authority. In *Loper Bright Enterprises v. Raimondo*, the Court reinforced that courts need not defer to merely “permissible” agency interpretations of statutory ambiguity, and are required to determine the best reading of the statute.³ Furthermore, in *West Virginia v. EPA*, the Court emphasized that agencies must point to clear congressional authorization when asserting regulatory authority of “economic and political significance”.⁴ The requirements proposed by the FCC would impact billions of dollars of commercial space activities, implicate international obligations under the 1967 Outer Space Treaty, and be at odds with national space policy.

Agencies possess only those powers granted by Congress. When Congress has chosen to regulate private space activities, it has done so explicitly and unambiguously, assigning launch and reentry licensing authority to the Department of Transportation and remote sensing licensing authority to the Department of Commerce.⁵ Congress has never granted comparable authority for space operations, space safety, or orbital debris mitigation to the FCC.

The NPRM also conflicts with recent Executive Branch direction. Space Policy Directive-3 designates the Department of Commerce as the lead civil agency for space situational awareness and space traffic management.⁶ More recently, President Trump’s Executive Order on “Enabling Competition in the Commercial Space Industry” directs the Secretary of Commerce to propose a mission authorization framework for novel space activities.⁷

Congress has likewise considered several pieces of legislation that place such authorities within the Department of Commerce. Neither Congress nor the Executive Branch has indicated intent for the FCC to assume regulatory authority for space activities outside of radiofrequency communications activities. In addition, FCC actions that not only exceed Congressional authority, but are also taken outside the carefully coordinated interagency process within the Executive Branch risk creating duplicative or conflicting requirements for space operators.

² The Committee’s 2020 letter is available at: <https://science.house.gov/2020/4/house-science-committee-leaders-criticize-fcc-action-orbital-space-debris>; the Committee’s 2022 letter is available at: <https://science.house.gov/2022/9/science-committee-leaders-send-letter-to-fcc-on-orbital-debris-mitigation-standards>.

³ *Loper Bright Enterprises v. Raimondo*, 603 U.S. 369 (2024).

⁴ *West Virginia v. Environmental Protection Agency*, 597 U.S. 697 (2022).

⁵ Commercial Space Launch Act of 1984 (Public Law 98-575); see also Land Remote Sensing Policy Act of 1992 (Public Law 102-555).

⁶ President Donald J. Trump, *National Space Traffic Management Policy*, Space Policy Directive-3, June 18, 2018.

⁷ Executive Order 14335, *Enabling Competition in the Commercial Space Industry*, Aug. 13, 2025.

The NPRM acknowledges that the FCC is faced with increasing application volume and complexity, creating “slow decision timelines and unpredictable outcomes.”⁸ Commission resources should be directed towards carrying out its clearly delegated responsibility to license radiofrequency communications and manage spectrum. Expanding into areas without clear statutory authority risks distracting from that mission, creating duplicative or conflicting regulatory requirements, and increasing burdens on commercial operators, all of which undermines U.S. economic competitiveness and leadership in space. As the NPRM recognized, “[u]nnecessary regulatory burden imposed on a dynamic, early growth industry can have substantial costs.”⁹ The Commission should not contribute to such burden, especially absent clear congressional authorization.

For these reasons, we respectfully request that the Commission suspend the NPRM or substantially narrow the NPRM through an FNPRM so that its contents are confined strictly to radiocommunications licensing within the clear bounds of the Communications Act. We invite the Commission to avail itself of the Science Committee and its staff as it considers any future action related to space activities.

Sincerely,



Brian Babin
Chairman
House Committee on Science, Space,
and Technology



Zoe Lofgren
Ranking Member
House Committee on Science, Space,
and Technology

cc: Commissioner Anna M. Gomez
Commissioner Olivia Trusty

⁸ NPRM at 3.

⁹ *Id.*